

FIRST AMENDMENT TO LEASE AGREEMENT

This First Addendum to Lease Agreement (this “**First Amendment**”) is entered into as of the dates set forth below, but effective for all purposes as of November 1, 2023, by and between:

BELLE REALTY OF LAFAYETTE, L.L.C., a Louisiana limited liability company, whose current mailing address is 101 Arnould Boulevard, Lafayette, Louisiana 70506 (hereinafter referred to as the “**Lessor**”);

and

ELLE RAE | A CLOTHING BOUTIQUE, LLC, a Louisiana limited liability company, whose mailing address during the term of this Lease shall be 125 Arnould Boulevard, Lafayette, Louisiana 70506, (hereinafter referred to as the “**Lessee**”).

WHEREAS, Lessor and Lessee entered into a certain Lease Agreement effective as of March 1, 2022 (the “**Lease Agreement**”),

WHEREAS, Lessee and Lessor desire to enter into this First Amendment to revise the Lease Agreement.

NOW THEREFORE, in consideration of the foregoing the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged the parties hereto agree as follows:

1. Section 2.01 of the Lease Agreement is hereby deleted in its entirety and replaced with the following.

“Section 1.01 – Premises:

- A. Lessor does hereby lease to Lessee, and Lessee hereby leases from Lessor the following two (2) premises, being more particularly described as follows:

One Thousand Seven Hundred Thirty-Five square feet (1,735) located in the Boulevard Shopping Center Property as shown on the plat attached hereto as **Schedule A** and having the dimensions set forth thereon. Said Premises have a municipal address of 125 Arnould Boulevard, Lafayette, Louisiana 70506 (hereinafter called “**Premises 1**”);

and

Two Thousand Five Hundred Thirty-Eight square feet (2,538) located in the Boulevard Shopping Center Property as shown on the plat attached hereto as **Schedule A** and having the dimensions set forth thereon. Said Premises have

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a municipal address of 127 Arnould Boulevard, Lafayette, Louisiana 70506 (hereinafter called “**Premises 2**”; and, collectively with Premises 1, hereinafter sometimes referred to as the “**Premises**”).

- B. Lessee warrants and represents that it has inspected the Premises and accepts the Premises, including the building and improvements, in their present state and without any representation or warranty by Lessor whatever as to the condition of the Premises. Lessor shall not be responsible for the condition of the Premises.
- C. Lessor makes no covenant, representation or warranty as to the suitability of the Premises for any purpose or use whatsoever or as to the physical conditions thereof. Lessee acknowledges that it has inspected the Premises, observed their physical characteristics, determined their compliance with requirements imposed by any governmental agency having jurisdiction over the Premises, and examined their existing conditions, and has had the opportunity to conduct such investigation and study on and of the Premises as it deems necessary for its intended use and occupancy under this Agreement. Lessee hereby waives any and all objections to or complaints about the physical characteristics and existing conditions of the Premises. Lessee further acknowledges and agrees that the Premises are being leased to, and accepted by Lessee in their present condition “AS IS” with all faults, and Lessee hereby assumes the risk that their adverse physical characteristics and existing conditions may not have been revealed by its inspection or investigation of the Premises. By taking possession of the Premises, Lessee accepts the Premises as suitable for the purpose for which the same are leased, and accepts the Premises and each and every acceptance thereof and Lessee, by said acts, waives any and all defects therein.”
2. Section 4.01 of the Lease Agreement is hereby deleted in its entirety and replaced with the following.

“Section 4.01 - Rent:

- A. Base Rent. During the Initial Term, the Lessee shall pay to the Lessor a monthly base rent for Premises 1 and Premises 2, which is calculated as follows:

4273 SF	PSF	Monthly
UNIT	125-127	125-129
BASE	\$ 13.00	\$ 4,629.08

- C. Additional Rent. During the Initial Term, the Lessee shall pay to the Lessor, as additional rent (“**Additional Rent**”), the following amounts.

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1. Common Area Maintenance Charges. The Lessee shall pay to the Lessor, the Lessee's Pro Rata Portion of the Common Area (as hereinafter defined) maintenance charges ("**Common Area Maintenance Charges**"). The Common Area Maintenance Charges shall mean the aggregate of all costs and expenses payable by Lessor in connection with the operation and maintenance of the Common Area in the Boulevard Shopping Center Property, including but not limited to landscaping costs, parking area maintenance costs (including repairing, resurfacing, cleaning and striping), utility costs (including water, sewer, electricity and gas), security system costs, life and safety systems costs, electronic monitoring system costs, compensation (including employment taxes and benefits) of all persons who perform duties connected with the operation and maintenance of the Common Area and any other reasonable costs incurred by the Lessor with respect to the Common Area and not otherwise reimbursed by the Lessee hereunder. Common Area shall mean all areas, space, equipment and special services provided by the Lessor for the common or joint use and benefit of the Lessee and other tenants, their employees, agents, servants, suppliers, customers and other invitees, including but not limited to retaining walls, fences, landscaped areas, parking areas, curbs, driveways, sidewalks, private roads, green spaces, landscape areas, patios, service areas and all common areas and other areas all as shown on the site plan attached hereto as *Schedule B*.
2. Tax and Insurance Charges. The Lessee shall pay to the Lessor the Lessee's Pro Rata Portion of the annual charges incurred by the Lessor for taxes and insurance coverage for the Boulevard Shopping Center Property ("**Taxes and Insurance Charges**"). Tax charges shall include all real property taxes, personal property taxes, improvement bonds and other charges or assessments which are levied upon or with respect to the Boulevard Shopping Center Property, including any increase in such taxes or a reassessment of the value of the Boulevard Shopping Center Property, license fees, or other taxes or fees levied in connection with the Lessor's leasing or rental of the Boulevard Shopping Center Property, but shall not include any federal or state income tax imposed upon the Lessor. Insurance charges shall include the cost of any insurance obtained by the Lessor in connection with the Boulevard Shopping Center Property, including but not limited to fire, casualty and liability insurance policies.
3. Payment of Additional Rent. Beginning with the Commencement Date, and continuing on the first day of each calendar month thereafter, the Lessee shall pay to the Lessor, as Additional Rent, one twelfth of the Lessee's Pro Rata Portion of the Common Area Maintenance Charges and one twelfth of the Lessee's Pro Rata Portion of the Taxes and Insurance Charges as set forth herein. The parties agree that the Common Area Maintenance Charges for the period beginning on the Commencement Date of this Agreement \$2.10 per square foot of each premises annually, payable monthly as provided herein. The parties agree that the Tax Charges for the period beginning on the Commencement Date of this Agreement \$0.95 per square foot of each premises annually, payable monthly as provided herein. The parties agree that the Insurance Charges for the period beginning on the Commencement Date of this Agreement \$0.95 per square foot of each premises annually, payable monthly as

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provided herein.

The Total Monthly Rental Payment Amount for the first three (3) months of the Initial Term for the Premises shall be calculated as follows:

4273 SF	PSF	Monthly
UNIT	125-127	125-129
BASE	\$ 13.00	\$ 4,629.08
CAM	\$ 2.10	\$ 747.78
TAX	\$ 0.95	\$ 338.28
INS	\$ 0.95	\$ 338.28
TOTAL	\$ 17.00	\$ 6,053.42

Notwithstanding anything contained herein to the contrary, beginning in the second year of the Initial Term, Lessor may, if, in Lessor's discretion, the same is necessary to cover an increase in Taxes and Insurance charges, increase the amount of the Common Area Maintenance Charges and/or Taxes and Insurance Charges for any calendar year thereafter by providing written notice of the same to the Lessee; provided, however that any such increase shall not exceed the prior calendar year actual Common Area Maintenance Charges and/or Taxes and Insurance Charges by more than five percent (5%).

4. Payment of Rent. The monthly payments of the Base Rent and Additional Rent for Premises(collectively, the "Total Monthly Rental Payment") shall be due on the first day of each calendar month. The Lessor and Lessee hereby acknowledge and agree that the Lessee shall be obligated to make monthly Additional Rent payments beginning with the Commencement Date.

Except as provided herein or as may be negotiated between the Lessor and Lessee, the Total Monthly Rental Payment is due on the first day of each calendar month. In the event the Lessor does not receive the Total Monthly Rental Payment on or before the fifth day of the calendar month, a late fee in the fixed amount of \$100.00 plus a daily charge beginning on the sixth day of the calendar month in the amount of \$25.00 per day shall be charged and shall be due and payable by the Lessee for each late payment.

All rental payments due hereunder shall be made to the Lessor by mailing the same to 101 Arnould Boulevard, Lafayette, Louisiana 70506 or such other place, as the Lessor shall designate in writing. Notwithstanding the foregoing, Lessor shall have the right

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to require at any time during the Initial Term that the Total Monthly Rental Payment and any other payments due to Lessor be paid to Lessor via electronic funds transfer, automatic wire transfer, ACH payment transfer, or other automated electronic payment method for deposit into and credit to a bank account designated in writing by Lessor.”

- 3. The Lessor and the Lessee hereby agree that the terms and conditions of this First Amendment shall be kept confidential between the Lessor and Lessee and shall not be disclosed to any other persons, including but not limited to any tenants or occupants of On The Boulevard Shopping Center. The Lessee acknowledges that this agreement of confidentiality is an inducement to the Lessor to enter into this Agreement.
- 4. All capitalized terms used herein and not otherwise specifically defined herein shall have the meanings ascribed to those terms in the Lease.
- 5. The remainder of the terms of the Lease Agreement not specifically amended by this First Amendment shall remain and be in full force and effect.
- 6. This First Amendment may be executed in two or more counterparts each of which, when executed and delivered as prescribed, shall constitute an original.

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THUS, DONE AND SIGNED as of the date set forth below by the Lessor, but effective as of November 1, 2023.

LESSOR:

BELLE REALTY OF LAFAYETTE, L.L.C.,
a Louisiana limited liability company

By: _____
Printed Name: _____
Its: _____
Dated: _____

THUS, DONE AND SIGNED as of the date set forth below by the Lessor, but effective as of November 1, 2023.

LESSEE:

ELLE RAE | A CLOTHING BOUTIQUE, LLC,
a Louisiana limited liability company

By: _____
Printed Name: _____
Its: _____
Dated: _____

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Lessee's Initials _____